



LAND LAWS

UNIT I — OWNERSHIP & CLASSIFICATION OF LAND

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV

Comprehensive Exam Preparation Notes · Target: 75+ Marks

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UNIT I — OVERVIEW & STUDY MAP

✓ What IS in this Unit (Scope)

- Classification of Lands (types, categories, ownership-based)
- Concepts of Absolute & Limited Ownership — tenancy and lease
- Doctrine of Eminent Domain — state's power to acquire
- Doctrine of Escheat — property passing to state on intestate death without heirs
- Doctrine of Bona Vacantia — ownerless/unclaimed property vests in state
- Land Records — maintenance, mutation, Rights of Record (ROR)
- Pattas and Title Deeds — issuance & legal effect
- Telangana Rights in Land & Pattadar Pass Books Act, 2020 — recent changes
- Land Titling (Torrens System) — Title Guarantee, Conclusive Title, Title Insurance

✗ What is NOT in this Unit (Do NOT mix)

- Land acquisition procedure (LARR Act 2013) — Unit III
- Zamindari / Ryotwari / Mahalwari settlements — Unit II
- Ceiling on agricultural holdings — Unit IV
- Forest Rights Act 2006 — Unit IV
- Assigned Lands / Scheduled Areas regulation — Unit V

★ Predicted High-Probability Questions (2026 Exam)

- Part A: Doctrine of Eminent Domain (appeared 2024, 2021, 2020, 2019, 2018 — almost certain)
- Part A: Doctrine of Bona Vacantia (appeared 2022, 2019, 2018 — very high)
- Part A: Classification of Lands (appeared 2021, 2020)
- Part A: Pattas and Title Deeds (appeared 2025, 2022, 2021)
- Part B: Doctrine of Eminent Domain + Bona Vacantia combined essay (appeared 2018, 2025)
- Part B: Protection of Right to Property under Constitution + Land Reforms
- Part C: Eminent Domain for commercial/private use — can government acquire? (appeared 2024)

Critical Numbers & Provisions — Unit I

- Article 300-A — Right to Property (not a Fundamental Right since 44th Amendment 1978)
- Article 12, 13 — State action & validity of laws
- Article 31-A, 31-B, 31-C — saved land reform laws from Part III challenge
- IX Schedule — inserted by 1st Constitutional Amendment 1951
- Eminent Domain = inherent sovereign power; no specific statute needed
- Bona Vacantia — s.29 Indian Succession Act 1925 / s.9 Civil Procedure Code / State Escheats Act



PART A — SHORT NOTES (6 Marks Each)

Each answer should be approximately 200–250 words. Use the structure below.

A-1. Doctrine of Eminent Domain

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

Eminent Domain is the inherent sovereign power of the State to acquire, use, or destroy private property for public purpose, even without the owner's consent, subject to payment of just compensation.

KEY POINTS

- Inherent power — does not derive from any statute; exists by virtue of sovereignty
- Three essential elements: (1) Public Purpose, (2) Just Compensation, (3) Legal Authority / Due Process
- In India, originally protected under Article 19(1)(f) and Article 31 (pre-1978)
- After 44th Constitutional Amendment Act 1978 — Right to Property downgraded to a constitutional right under Article 300-A (not a Fundamental Right)
- Article 31-A saves acquisition laws from being challenged under Articles 14 and 19
- The State MUST pay compensation — 'just and fair' as per the LARR Act 2013
- Eminent domain cannot be exercised for private benefit of individuals — must be genuine public purpose

 **Example:** Telangana Government acquiring agricultural land for construction of Kaleshwaram Lift Irrigation Project — classic exercise of eminent domain for public purpose.

 **Case:** State of Bihar v. Kameshwar Singh (1952) — SC first tested limits of eminent domain; Rustom Cavasjee Cooper v. Union of India (Bank Nationalisation Case, 1970) — compensation must be adequate.

 **TIP:** Remember the mnemonic P-C-A: Public Purpose + Compensation + Authority = valid Eminent Domain. If any one is missing, the acquisition is void.

A-2. Doctrine of Escheat

Exam Frequency: ★★☆☆ (MEDIUM)

DEFINITION

Escheat is the reversion of property to the State when a person dies intestate (without a will) leaving no legal heirs, or when a corporation is dissolved and no other provision is made for its property.

KEY POINTS

- Derived from feudal law — all land ultimately belongs to the sovereign
- In India, governed by Section 29 of the Indian Succession Act, 1925
- Under Hindu Law — governed by Section 29 of the Hindu Succession Act, 1956 (Govt. takes as last heir)
- Applicable to: intestate death with no heirs, dissolved companies, abandoned property
- Distinct from Bona Vacantia — Escheat is specifically about inheritance failure; Bona Vacantia is broader (ownerless property)
- State does not take as an heir; it takes by its sovereign right (prerogative)
- The property vests in the State Government of the territory where it is located

📌 **Example:** A person dies without a will and without any relatives. His house in Hyderabad passes to the Government of Telangana by way of Escheat.

🏛️ **Case:** Union of India v. Kamala Devi (1975) — Doctrine of Escheat applies to company property on dissolution; Government of Andhra Pradesh v. Gundavarapu Venkata Rao — property of an intestate with no heirs escheats to State.

💡 **TIP:** E-S-C-H-E-A-T: Every Successor Claimed Has Expired / Abandoned Title — State Takes. Escheat = death + no heirs.

A-3. Doctrine of Bona Vacantia

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

Bona Vacantia (Latin: 'ownerless goods') is the legal principle that property which has no owner, or whose owner cannot be identified or found, vests in the State by default.

KEY POINTS

- Broader than Escheat — covers all ownerless property, not merely inheritance situations
- Applies to: dissolved companies, unclaimed land, abandoned property, property of persons who have disappeared
- Statutory basis: Section 9, CPC (jurisdiction of courts); various State Escheats Acts; Indian Succession Act s.29
- The State takes as sovereign, not as owner or heir
- Once property vests in State under Bona Vacantia, third parties cannot claim it
- Doctrine upheld under Article 296 of the Constitution — property vests in Union or State depending on location
- Can be contested if genuine owner appears with valid title

 **Example:** A company registered in Hyderabad is wound up. Its properties for which no claim is made by creditors or shareholders become Bona Vacantia and vest in the Government of Telangana.

 **Case:** Nathulal v. State of MP (1966) SC — Bona Vacantia applies to land abandoned by its owner; Bhagwati Prasad v. Delhi State — property of untraceable owner vests in State.

 **TIP:** BONA = Belongs to Nobody — Acquired by State. Bona Vacantia is the wider concept; Escheat is a subset. In exams, if the question mentions 'ownerless' or 'dissolved company' — write Bona Vacantia.

A-4. Classification of Lands

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Land in India is classified on the basis of ownership, use, physical character, and revenue status for the purpose of administration, revenue collection, and legal rights.

KEY POINTS — Classification by Ownership

- Private Land (Ryoti Land) — owned by individuals; heritable and transferable
- Government Land — owned by State/Central Govt; includes forests, wastelands, poramboke
- Communal / Community Land — used by the village community; managed by Gram Panchayat
- Institutional Land — owned by temples, religious bodies, endowments, etc.

KEY POINTS — Classification by Use/Revenue

- Wet Land (Tari) — irrigated agricultural land; higher land revenue
- Dry Land (Meeta) — rain-fed agricultural land; lower revenue
- Garden Land — horticulture/plantation; separate classification
- Forest Land — governed by Indian Forest Act 1927 and Forest Rights Act 2006
- Waste Land — uncultivated government land; can be assigned to landless poor
- Poramboke — land reserved for public use (roads, rivers, tanks)

 **Example:** In Telangana, land is classified in the Pahani (Record of Rights) as 'Agriculture — Wet' or 'Agriculture — Dry', with different 'Survey Numbers' and tax rates.

 **Case:** State of AP v. Noorbhai (1988) — distinction between government land and private ryoti land is critical for eviction proceedings.

 **TIP:** Remember WDGFW: Wet, Dry, Garden, Forest, Waste — the five primary agricultural land types. Add Poramboke for public-use land.

A-5. Absolute & Limited Ownership

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Absolute ownership gives the owner complete, unrestricted rights to possess, use, enjoy, and dispose of property. Limited ownership restricts one or more of these rights by law, contract, or personal status.

KEY POINTS — Absolute Ownership

- Owner has full powers — right to possess, use, enjoy, alienate, exclude others
- Heritable and transferable without restriction (subject to law)
- Example: Freehold ownership of residential land by an individual

KEY POINTS — Limited Ownership

- Tenancy — tenant has right to cultivate/use; cannot sell without landlord's consent
- Life interest — property reverts after death; cannot be alienated
- Lease — right to use for a defined period; ownership remains with lessor
- Mortgage — mortgagor retains ownership but creates security interest in property
- Statutory limitations — ceiling laws restrict how much land one can own (Ceiling Act 1973)
- Hindu women's limited estate (abolished by HSA 1956 — now full ownership)

 **Example:** A tenant under the Telangana Tenancy Act has a protected tenancy right — he can cultivate the land but cannot sell or mortgage without landowner's permission.

 **Case:** Commissioner of Wealth Tax v. Her Highness Vijaya Raje (1983) — distinction between absolute and limited ownership for tax purposes.

 **TIP:** ABS-OWN = All rights (PUDEA): Possession, Use, Dispose, Exclude, Alienate. LIMITED = one or more of PUDEA is curtailed.

A-6. Land Records (Records of Rights / ROR)

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Land Records are official government documents that record the ownership, possession, cultivation, and nature of land parcels. In Telangana, the primary land record document is the Pahani (Record of Rights — ROR).

KEY POINTS

- Maintained under the Telangana Land Revenue Act and Telangana Rights in Land & Pattadar Pass Books Act 2020
- ROR (Record of Rights) — records: owner's name, pattadar name, nature of land, survey number, extent, water source, encumbrances
- Mutation (Dakhilkharij) — process of updating land records on transfer of ownership
- Pahani — village-level annual record; basis for all revenue and legal proceedings
- Dharani Portal — Telangana's digital land records & registration platform (integrated ROR + registration)
- Jamabandi — annual settlement of accounts between government and ryots
- Adangal — field register showing cultivation details for a survey number

 **Example:** After purchasing land in Sangareddy, the buyer applies for mutation through the Dharani Portal so that the Pahani reflects his name as the new Pattadar.

 **Case:** Suraj Bhan v. Financial Commissioner (2007) SC — entries in revenue records are evidence of possession, not conclusive proof of ownership.

 **TIP:** ROR = Revenue record of PONCE: Pattadar, Owner, Nature, Cultivation, Encumbrances. An entry in ROR is NOT conclusive title — it is only prima facie evidence.

A-7. Pattas and Title Deeds

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

A Patta (Pattadar Pass Book) is an official document issued by the Revenue Department recording a person's right to hold and cultivate land. A Title Deed is a registered legal document (typically a sale deed) that establishes ownership.

KEY POINTS — Patta / Pattadar Pass Book

- Issued under Telangana Rights in Land & Pattadar Pass Books Act, 2020
- Records: survey number, extent, nature of land, pattadar's name, land use type
- Pattadar Pass Book — government-issued document combining patta and title evidence
- NOT conclusive title — only prima facie evidence of possession/right to use
- Issued digitally through Dharani Portal since 2020

KEY POINTS — Title Deed

- Registered Sale Deed / Gift Deed / Will — creates and transfers legal ownership
- Registered under Registration Act 1908 + Transfer of Property Act 1882
- Title Deed is stronger evidence of ownership than Patta alone
- In Torrens System (Conclusive Title) — Title Deed becomes conclusive

 **Example:** A farmer in Warangal holds a Pattadar Pass Book for his 3-acre agricultural land. He also has a registered Sale Deed (Title Deed) from when he purchased the land in 2005.

 **Case:** A. Subba Rao v. State of AP (2010) — Pattadar Pass Book entry alone is insufficient to defeat a claim backed by a registered sale deed.

 **TIP:** Patta = Prima facie (not conclusive). Title Deed = stronger. In Torrens System = Conclusive. Hierarchy: Conclusive Title > Title Deed > Patta.



PART B — LONG ESSAYS (15 Marks Each)

Each essay should be 600–800 words. Use Introduction → Headings → Conclusion format.

B-1. Doctrine of Eminent Domain and Doctrine of Bona Vacantia

Exam Frequency: ★★★★★ (VERY HIGH)

(This combined essay appears in 2018 and 2025 papers — very high probability for 2026)

I. Introduction

Two of the most fundamental doctrines governing the State's relationship with private property are the Doctrine of Eminent Domain and the Doctrine of Bona Vacantia. Both rest on the premise that the State has an overriding interest in property within its territory, but they operate in very different circumstances and serve distinct purposes.

II. Doctrine of Eminent Domain

A. Meaning and Origin

The term 'Eminent Domain' was coined by the Dutch jurist Hugo Grotius in his work *De Jure Belli ac Pacis* (1625). It refers to the supreme power of the sovereign to appropriate private property for public use. In India, this power is derived from the concept of state sovereignty and was constitutionally recognised under Article 31 (now repealed) and continues under Article 300-A.

Key Rule: Eminent Domain requires THREE essentials: (1) Public Purpose, (2) Just Compensation, (3) Legal Authority / Due Process

B. Constitutional Framework

- Pre-1978: Right to Property was a Fundamental Right under Articles 19(1)(f) and 31
- 44th Constitutional Amendment, 1978 — deleted Article 19(1)(f) and Article 31
- Article 300-A now provides: 'No person shall be deprived of his property save by authority of law'
- Article 31-A — saves acquisition laws from challenge under Articles 14 & 19
- Article 31-B — laws in IX Schedule are immune from fundamental rights challenge

C. Essential Elements Explained

Public Purpose: The acquisition must serve a genuine public purpose — roads, irrigation, defence, public utilities. Courts have interpreted 'public purpose' broadly but held that purely private commercial benefit does not qualify.

Just Compensation: Compensation must be 'fair market value' — now detailed in the LARR Act 2013 with multipliers for rural land (up to 4x market value) and social impact assessment requirements.

Legal Authority: The procedure prescribed by law must be followed — notifications, objections, award enquiry — any deviation renders the acquisition void.

Case: State of Bihar v. Kameshwar Singh (1952) — Acquisition must serve genuine public interest, not merely transfer wealth from one private party to another. *Rustom Cavasjee Cooper v. UOI* (1970) — Compensation must be adequate, not illusory. *Maneka Gandhi v. UOI* (1978) — 'Law' under Article 300-A must be just, fair, and reasonable.

D. Limitations on Eminent Domain

- Cannot be used for private benefit of individuals or companies (unless genuine public purpose)
- Compensation cannot be illusory or nominal
- Procedural safeguards must be followed
- Tribal land in Scheduled Areas has additional protection (PESA, 1996)

III. Doctrine of Bona Vacantia

A. Meaning

Bona Vacantia (Latin: 'ownerless goods') refers to the principle that property which has no owner vests

in the State. Unlike Eminent Domain which involves a deliberate act of the State acquiring someone's property, Bona Vacantia operates automatically when property is left without a legal owner.

B. Situations Where Bona Vacantia Applies

- Company dissolved under Companies Act without distributing all assets
- Person dies intestate without any legal heirs (also called Escheat — a subset of Bona Vacantia)
- Property abandoned by the owner without intention to reclaim
- Unclaimed property after a specified period

C. Constitutional Basis

Article 296 of the Constitution provides that properties vesting in the Union or State by way of Bona Vacantia shall vest in the respective Government. The distribution between Union and State depends on where the property is situated.

Key Distinction: Eminent Domain = State TAKES property (active). Bona Vacantia = Property COMES to State (passive). In Eminent Domain, compensation is paid. In Bona Vacantia, no compensation is paid.

Case: Nathulal v. State of MP (1966) SC — Bona Vacantia applies when owner has completely abandoned property without intention to reclaim. Attorney General v. Parsons — company property remaining undistributed on dissolution becomes Bona Vacantia.

IV. Comparison: Eminent Domain vs Bona Vacantia

Aspect	Eminent Domain	Bona Vacantia
State action	Active — State initiates acquisition	Passive — property comes to State automatically
Owner	Owner exists; property taken from them	No owner or owner untraceable
Compensation	Must be paid (LARR Act 2013)	Not paid — no owner to pay
Constitutional basis	Article 300-A, 31-A	Article 296
Legal process	Notifications, SIA, Award	Vests automatically by operation of law

V. Conclusion

Both doctrines reflect the supremacy of the sovereign's interest in property within its territory. Eminent Domain is a coercive power tempered by the obligation of just compensation and due process — its exercise must be for genuine public benefit. Bona Vacantia fills in the gap where property would otherwise have no custodian. Together, these doctrines ensure that no property in the State remains without a legal owner and that the State can mobilise private property for public good when legitimately required. Both doctrines are grounded in natural law theory (the State's role as ultimate guardian of its territory) and find expression in the Indian constitutional framework under Articles 296 and 300-A.

B-2. Classification of Land on the Basis of Ownership / Definition of Land

Exam Frequency: ★★★★★ (HIGH)

(Asked in December 2020 — likely to recur)

I. Introduction

The word 'Land' in legal parlance is not confined to the physical soil. Under Section 3 of the Transfer of Property Act 1882, 'property' includes land, benefits arising out of land, and things attached to the earth. Land forms the primary basis of agricultural economy, revenue, and social identity in India. Its classification is therefore fundamental to understanding land tenure, revenue law, and social reform legislation.

II. Definition of Land

Statutory definition: Land includes benefits arising out of land, things attached to the earth, or permanently fastened to anything attached to the earth [Sec. 3, General Clauses Act 1897].

For revenue purposes, land includes the soil, mines, minerals, quarries, forests, water bodies, and all rights attached to the land. Under the Telangana Land Revenue Act, 'land' includes any portion of the territory of the State.

III. Classification Based on Ownership

1. Private Land (Ryoti / Pattadar Land)

Land held by private individuals with heritable and transferable rights. The holder (Pattadar) pays land revenue to the Government and enjoys full ownership rights subject to land ceiling laws. This is the most common form of land ownership in rural India.

2. Government Land (State Land)

Land owned by the State or Central Government. Includes three sub-categories:

- Sarkari Land (Revenue Wasteland) — uncultivated government land; can be assigned to landless poor
- Protected Forest Land — governed by Indian Forest Act 1927
- Reserved/Protected Government lands — used for public purposes

3. Community Land / Communal Land

Used collectively by village communities. Examples: grazing grounds (gochar), village sites, threshing floors. Managed by Gram Panchayat. Cannot be privately owned or alienated.

4. Institutional / Endowment Land

Land owned by religious institutions, temples, mosques, churches, charitable trusts, and endowments. Governed by Endowments Acts and Trust laws. Cannot be freely alienated.

5. Forest Land

Land classified as forest under the Indian Forest Act 1927. Governance is shared — Reserved Forests, Protected Forests, and Village Forests have different regulatory regimes. Forest Rights Act 2006 creates rights for tribal dwellers within forest land.

IV. Classification Based on Use/Revenue Status

- Wet Land (Tari): Irrigated by canals, tanks, or wells. Higher land revenue.
- Dry Land (Meeta): Depends entirely on rainfall. Lower revenue.
- Garden Land: Orchards, plantations, horticulture.
- Waste Land: Uncultivated, government-owned; can be assigned.
- Poramboke: Lands reserved for public use — roads, drains, tanks, rivers.

- Assigned Land: Waste/government land assigned to landless agricultural poor — transfers restricted under Telangana Assigned Lands (Prohibition of Transfers) Act 1977.

V. Constitutional Dimension

Entry 18 of the State List (Schedule VII) gives State Legislatures power over land, land rights, and tenancy. Article 300-A protects property from deprivation except by authority of law. The IX Schedule protects land reform legislations from fundamental rights challenges.

VI. Conclusion

The classification of land is the foundation of the entire edifice of Indian land law. It determines who has what rights, what laws apply, what revenue is payable, and what protections exist. A correct understanding of land classification is essential not only for legal practitioners but also for implementing progressive land reforms that seek to balance private rights with the common good, as mandated by Articles 38 and 39 of the Constitution.

B-3. Telangana Rights in Land & Pattadar Pass Books Act, 2020

Exam Frequency: ★★★★★ (HIGH)

I. Introduction

Land records are the bedrock of property rights. In Telangana, the Telangana Rights in Land and Pattadar Pass Books Act, 2020 represents a landmark reform, replacing the earlier 1971 Act and integrating land records with digital registration through the Dharani Portal. It seeks to provide conclusive, tamper-proof evidence of land ownership to cultivators.

II. Historical Background

- Earlier governed by the AP Rights in Land and Pattadar Pass Books Act, 1971 (as extended to Telangana)
- Problems: multiple documents (Pattadar Pass Book + separate Link Document), scope for fraud, delays in mutation
- Telangana enacted the Rights in Land and Pattadar Pass Books Act, 2020 — came into force with the Dharani portal

III. Key Provisions of the 2020 Act

A. Integrated Title Document

The Act creates a single integrated Pattadar Pass Book that combines: (1) Record of Rights entries, (2) Survey details, and (3) Link document of title history. This single document serves as evidence of the pattadar's right to hold and cultivate land.

B. Dharani Portal — Digital Integration

- All registrations of agricultural land in Telangana are now done exclusively through the Dharani portal
- Mutation is automatically triggered on registration — no separate mutation application required
- Eliminates manual intervention in mutation — reduces corruption
- E-pass book issued digitally after registration

C. Prohibited Transactions

- Agricultural land (non-municipal) cannot be registered outside the Dharani portal
- Government lands, assigned lands, ceiling surplus lands, and land under court orders are 'frozen' — cannot be registered without the portal flagging and appropriate clearance
- This prevents alienation of restricted categories of land

D. Dispute Redressal

- Disputes regarding entries in Dharani are addressed to the Revenue Divisional Officer (RDO)
- Appeals lie to the District Collector
- Civil courts have limited jurisdiction over Dharani entries (by design, to keep disputes within revenue hierarchy)

Critical Amendment 2023: Telangana Government announced review of Dharani-related issues post-election — significant modifications to the Act were proposed under the new government (2024), including re-enabling mutation through Revenue courts in disputed cases.

IV. Significance of the Act

- Provides prima facie evidence of right (not yet conclusive title as in Torrens System)
- Reduces land disputes by creating clear digital trail
- Benefits marginal farmers who can use Pass Book for bank loans, subsidies
- First step towards 'Conclusive Title' / Torrens System in Telangana

🔗 **Case:** Telangana HC in multiple 2021–2023 orders directed that Dharani portal freezes should not prevent genuine owners from recording mutations — emphasising that the Act cannot override substantive property rights established by registered title deeds.

V. Torrens System / Land Titling (Brief)

The Torrens System (originated in Australia, 1858) creates a conclusive, State-guaranteed title. Once registered, the title cannot be challenged except for fraud. India has not yet fully adopted this system — the Pattadar Pass Book system is a step towards it but remains prima facie evidence, not conclusive.

- Title Guarantee — State guarantees the title once registered
- Conclusive Title — title is indefeasible and binding on all
- Title Insurance — State compensates wrongly dispossessed owners

VI. Conclusion

The Telangana Rights in Land and Pattadar Pass Books Act, 2020 is a significant step towards modernising land records and reducing land fraud. Its integration with Dharani brings transparency, speed, and accountability to land transactions. However, the challenge remains to move from prima facie evidence to conclusive title — a goal that requires further legislative and administrative steps, including adoption of a full Torrens-type system with State-backed title insurance.

PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion. Be clear and decisive.

C-1. Can Eminent Domain be Used to Acquire Land for Commercial Purposes?

Exam Frequency: ★★★★★ (VERY HIGH)

(August/September 2024 exam — very likely to recur)

PROBLEM: Can eminent domain be used to acquire land for commercial purposes? Decide.

I — ISSUE

The legal question is: Whether the exercise of the power of Eminent Domain (compulsory acquisition of private land) for commercial purposes — including for private companies, Special Economic Zones, or multinational corporations — constitutes a valid 'public purpose' under Indian land acquisition law?

R — RULE

- Article 300-A: No person shall be deprived of property save by authority of law
- LARR Act 2013 (Land Acquisition, Rehabilitation and Resettlement Act), Section 2(1): Defines 'public purpose' — includes infrastructure, defence, government projects, and projects for private entities with 70–80% consent
- Section 2(b) LARR 2013: Private companies may require up to 80% consent for acquisition; PPP projects 70% consent
- Section 3(z)(a): 'Public purpose' includes projects by companies where 80% consent is obtained
- Doctrine of Eminent Domain: The purpose must be genuinely PUBLIC — mere economic benefit or private profit does not qualify
- Constitution, Article 39(b) & (c): DPSP — State shall ensure material resources are distributed to serve the common good

KEY RULE: Commercial purpose ALONE does not constitute 'public purpose'. LARR 2013 PERMITS acquisition for private companies ONLY WITH 70-80% owner consent + SIA + R&R obligations.

A — APPLICATION

Applying the above rules to the problem:

If the government proposes to acquire land PURELY for a private commercial enterprise (e.g., a factory for a private corporation) WITHOUT following the consent requirements and without any public purpose element — this would be an INVALID exercise of Eminent Domain.

However, if the acquisition follows the LARR Act 2013 procedure — social impact assessment, consent of 70-80% of affected families, fair compensation (up to 4x market value for rural land), and R&R plan — then even an acquisition benefiting a private company can be VALID under Section 2(1)(b) of LARR 2013.

The Supreme Court in *Kedar Nath Yadav v. State of West Bengal* (2011) held that acquisition for a private industrial project without proper public purpose and consent was unconstitutional. Similarly, the Singur land acquisition controversy led to major amendments reinforcing consent requirements.

Case: *Kedar Nath Yadav v. State of WB* (2011) — acquisition for Tata Motors factory invalidated; *Nandini Sundar v. State of Chhattisgarh* (2011) — State cannot use land acquisition as a tool for private enrichment; *State of UP v. Manohar* (2005) — 'public purpose' must be genuinely public, not a ruse for private benefit.

C — CONCLUSION

DECISION: Eminent Domain CANNOT be used for purely commercial/private purposes. It CAN be used for projects involving private companies ONLY if: (1) a genuine public purpose element exists; (2) 70–80% consent of affected landowners is obtained; (3) Social Impact Assessment is conducted; (4) full fair compensation and Rehabilitation & Resettlement is provided as per LARR Act 2013. A bare commercial acquisition for private profit, without these safeguards, is UNCONSTITUTIONAL and can be challenged under Article 300-A of the Constitution.

C-2. Can Government Take Your Land for a Road? Which Legislation?

Exam Frequency: ★★☆☆ (MEDIUM)

PROBLEM: Can government take your land for a road? Which legislation is invoked by the government?

I — ISSUE

The legal issue is: (1) Whether the government has the power to compulsorily acquire private land for construction of a public road; and (2) Which legislation governs such acquisition in India/Telangana?

R — RULE

- Article 300-A: Deprivation of property only by authority of law
- PRIMARY LAW: The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (LARR Act 2013) — replaced the old Land Acquisition Act 1894
- Section 2(1)(a) LARR 2013: 'Public purpose' EXPRESSLY includes strategic purposes, infrastructure including roads, highways, bridges
- National Highways Act, 1956 (for National Highways) — separate special legislation
- Telangana Roads and Buildings Department can invoke LARR 2013 for state roads
- Eminent Domain: Road construction is the CLASSIC exercise of Eminent Domain — the most unambiguous public purpose

 **LEGISLATION:** Road acquisition is governed by: (1) LARR Act 2013 [primary]; (2) National Highways Act 1956 [for NHs]; (3) Telangana (State) — LARR 2013 as applicable

A — APPLICATION

Construction of a road is universally recognised as a 'public purpose' within the meaning of Section 2(1)(a) of the LARR Act 2013. The government proceeds by:

- STEP 1: Section 11 — Preliminary Notification (Section 4 under old Act 1894)
- STEP 2: Social Impact Assessment (SIA) under Section 4
- STEP 3: Publication of Section 19 declaration (public purpose confirmed)
- STEP 4: Hearing of objections by Collector (Section 15)
- STEP 5: Award by Land Acquisition Collector (Section 23)
- STEP 6: Payment of compensation — market value + solatium + annuity (Chapter V)

The landowner CANNOT refuse the acquisition if proper procedure is followed. However, the landowner CAN: (a) challenge the determination of compensation; (b) seek reference to Civil Court (Section 64); (c) challenge the notification if public purpose is disputed.

 **Case:** State of Punjab v. Gurdial Singh (1980) SC — government must act bona fide in exercising Eminent Domain for road; acquisition cannot be a colourable exercise. Srinivasa Co-operative Housing Society v. Madam Gurumurthy (1987) — compensation must reflect true market value.

C — CONCLUSION

YES — the government CAN take private land for constructing a road. This is the most classic exercise of Eminent Domain. The legislation invoked is: (1) the LARR Act 2013 (primary) for state and central roads; (2) the National Highways Act 1956 for National Highway acquisitions. The landowner must receive just compensation as determined under Chapter V of LARR 2013, which includes market value (up to 4x for rural land), solatium, and R&R benefits. The process is mandatory and the landowner cannot prevent acquisition but can challenge compensation adequacy.



QUICK REVISION SHEET — UNIT I

Key Numbers & Provisions

Article 300-A	Right to Property (constitutional right, not Fundamental Right since 1978)
Article 31-A	Saves acquisition laws from Articles 14 & 19 challenge
Article 31-B + IX Schedule	Land reform laws immunised from FR challenge (1st Amendment 1951)
Article 296	Bona Vacantia — property vests in Union/State
44th Amendment 1978	Deleted Art 19(1)(f) and Art 31 — property no longer FR
LARR Act 2013	Primary land acquisition law — replaced Land Acquisition Act 1894
S.2(1)(b) LARR 2013	Private company acquisition: 80% consent required
S.2(1)(c) LARR 2013	PPP project acquisition: 70% consent required
4x market value	Compensation multiplier for rural land under LARR 2013
TS Act 2020	Telangana Rights in Land & Pattadar Pass Books Act, 2020
Dharani Portal	Digital land records + registration platform, Telangana
Torrens System	Conclusive Title system (Australia 1858) — not yet fully adopted in India

Top Cases — One Liner

State of Bihar v. Kameshwar Singh (1952)	First SC test of Eminent Domain limits
Rustom Cavasjee Cooper v. UOI (1970)	Compensation must be adequate, not illusory
Kedar Nath Yadav v. State of WB (2011)	Acquisition for private factory without consent — invalid
Nathulal v. State of MP (1966)	Bona Vacantia — abandoned land vests in State
Suraj Bhan v. Financial Commissioner (2007)	Revenue records = evidence, not conclusive proof of ownership
A. Subba Rao v. State of AP (2010)	Pattadar Pass Book alone cannot defeat registered title deed
State of Punjab v. Gurdial Singh (1980)	Government must act bona fide in Eminent Domain exercise

Memory Mnemonics

- P-C-A (Eminent Domain): PUBLIC Purpose + COMPENSATION + AUTHORITY = Valid Acquisition
- BONA = Belongs to Nobody — Acquired by State (Bona Vacantia)
- E-SCHEAT = Every Successor Claimed Has Expired / Abandoned Title (Escheat = death + no

heirs)

- WDGFV (Land types): Wet, Dry, Garden, Forest, Waste
- PUDEA (Absolute Ownership): Possession, Use, Dispose, Exclude, Alienate
- Patta = Prima facie; Title Deed = stronger; Torrens = Conclusive
- ROR = Revenue evidence of PONCE: Pattadar, Owner, Nature, Cultivation, Encumbrances

⚠ Trap Questions — Watch Out!

- TRAP: 'Government can always use Eminent Domain for economic development' — FALSE. Must follow LARR 2013 consent requirements for private company projects.
- TRAP: 'Pattadar Pass Book gives conclusive title' — FALSE. It is prima facie evidence only.
- TRAP: 'Escheat and Bona Vacantia are the same' — FALSE. Escheat is a subset of Bona Vacantia (death without heirs). Bona Vacantia is broader.
- TRAP: 'Right to Property is a Fundamental Right' — FALSE since 44th Amendment 1978. It is now only a constitutional right under Article 300-A.
- TRAP: 'Dharani portal entries give conclusive title' — FALSE. Still prima facie evidence under the 2020 Act.
- TRAP: 'Land Acquisition Act 1894 is still in force' — FALSE. Replaced by LARR Act 2013 (with some special law exceptions like NH Act 1956).